

POLAND 2016

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1. Overview of the tax-benefit system

Unemployed persons receive benefits in a fixed amount for a period 180 or 365 days. In cases provided for in the law (and in special cases after the loss of the unemployment benefit) they may receive social assistance benefits (income related) - facultative temporary benefits (5-6 months). Besides, social assistance plays a role of the “last resort benefit”. Housing allowances function outside of the social assistance system and require fulfilment of income criterion. The income criterion also applies in the case of family benefits.

The tax system allows for joint taxation of spouses, and in the case of single parents the incomes that are taxable in accordance with the progressive tax scale can benefit from calculating the income on the preferential basis, i.e. assess the tax at the double amount of the tax calculated on half of the income. Incomes (revenues) on which lump tax is paid in and the incomes achieved by the adult child are being excluded from the sum total of those incomes.

As concerns social benefits, only pension benefits (retirement and disability pensions) and unemployment benefits (as well as pre-retirement allowances and bridging benefits) are taxable.

1.1. Average worker wage (AW)

The 2016 AW level is PLN 47 782 (Secretariat Estimate).¹

¹ The average wage in national economy in the 2011 was PLN 40.794,24 (Central Statistical Office, (www.gus.gov.pl). AW refers to the Average Wage estimated by the Centre for Tax Policy and Administration (www.oecd.org/ctp). For more information on methodology see Taxing Wages 2007-2008, OECD, 2008, part 4, sections 2 and 3.

2. Unemployment benefit

Program name in local language		Zasiłek dla bezrobotnych
Insurance is voluntary(V) or compulsory(C) for employees		(C) paid by employer (with some exceptions)
Employment record (E) and contribution (C) conditions		E + C: 365 days in last 18 months
Waiting period (days)		0
Maximum duration (months)		365 days
Up-rating mechanism of the benefit		By average annual total price index of consumer goods and services (see section 2.2.1)
Calculation of unemployment insurance benefit:	initial benefit as % of calculation base	Basic rate of PLN 831.10 per month in first three months of UB collection (adjusted up/down based on length of contribution history)
	benefit at the end of legal entitlement period in % of calculation base	Basic rate of PLN 652.60 per month from 91 st day of UB collection (adjusted up/down based on length of contribution history)
	Calculation base	n.a.
	Permitted employment and disregards when receiving unemployment insurance benefit	Employment is not permitted
Benefit provision (eligibility (E), generosity (G)) varies with	age	Duration varies with age
	family situation	Duration varies with family situation
	contract type	n.a.
	other	Duration varies with unemployment benefit eligibility period, local unemployment rate

2.1 Conditions for receipt

The right to unemployment benefit is granted only to a registered unemployed person.

2.1.1 Employment conditions

Pursuant to the Act of 20 April 2004 on employment promotion and labour market institutions (Journal of Laws 2016, item 645, with later amendments), the right to the benefit, as a rule, is granted to the unemployed person for each calendar day from a day of registration in an appropriate poviát (district) labour office, if:

- 1) there are no proposals of suitable work, work practice (internship), apprenticeship for adults, training, intervention works or public works (i.e. subsidized job) and;
- 2) within 18 months directly before the day of registration, jointly for the period of at least 365 days:
 - was employed and received remuneration in the amount of at least the minimum remuneration for work for which contributions are paid to the Labour Fund; the abovementioned period shall not include non-paid leaves lasting longer than 30 days in total,

- worked under the contract on home based work, and obtained income in the amount of at least the minimum remuneration for work,
- provided services under an agency contract or commission contract of or other contract on the provisions of services, or worked on performing these contracts, while the contribution assessment base for social insurance and the Labour Fund amounted to at least the minimum remuneration for work calculated for a full month period,
- paid social insurance contributions in respect of the non-agricultural activity or cooperation, while the contribution assessment base for social insurance and the Labour Fund amounted to at least the minimum remuneration for work (the period of running the non-agricultural activity by women aged over 55 and men aged over 60, for which these persons are released from payment contributions to the Labour Fund, is included into the period entitling for acquiring the right for unemployment benefit),
- performed work during the pre-trial detention or when serving the custodial sentence, while the contribution assessment base for social insurance and the Labour Fund amounted to at least the minimum remuneration for work,
- performed work in agricultural production cooperative, agricultural circles cooperative or agricultural services cooperatives, as a member of the cooperative, while the contribution assessment base for social insurance and the Labour Fund amounted to at least the minimum remuneration for work,
- paid contribution to the Labour Fund in connection with employment or other gainful work abroad for a foreign employer in the non-EU/EEA countries and countries that are not parties to the EEA Agreement, which have concluded agreements with the European Community and its Member States, amounting to 9.75% of average salary for each month of employment,
- was employed abroad and came to the Republic of Poland as a repatriate,
- was employed, performed duty or other gainful employment and received remuneration or obtained income in respect of which contributions are to be paid to the Labour Fund.

The period of 365 days includes the periods of:

- 1) compulsory military service, extended military service, military training, preparatory service, trainee service, contracted professional military service, military drill, temporary military service or military service in the case of mobilization and during the war, and obligatory service performed in civil defence and alternative service, as well as service as an officer;
- 2) parental leave granted in accordance with separate regulations;
- 3) receiving disability pension due to incapacity to work or perform duty, training disability pension and periods of receiving sickness allowance, maternity allowance, allowance in the amount of maternity allowance or rehabilitation benefit after the termination of employment, performing other gainful work or non-agricultural activity, if the assessment base for these allowances and the benefit, including the amount of social insurance contributions, amounted to at least the minimum remuneration for work;
- 4) not specified above, for which the social insurance contributions and the contributions to the Labour Fund were paid, if the contribution assessment base amounted to at least the minimum remuneration for work;
- 5) periods for which compensation was granted due to the illegal termination of the employment relationship or service relationship by the employer, and the period for which the compensation was granted to the employee due to shortening term of notice;
- 6) rendering services on the basis of activation agreement, referred to in the Act of the 4th of February 2011 on care over children at the age up to 3 years old;
- 7) receiving family pension in the situation when the person entitled to disability pension and, at the same time entitled to family pension – makes a choice for family pension;
- 8) performing personal care of a child by persons referred to in the Article 6a of Act of social insurance system.

In some cases the right to the unemployment benefit can be granted only after specific period of time, i.e.:

1) 120, 180 or 270 days respectively (depends if it's first, second or third and every next refusal), if the unemployed person:

a) refused – with no justified reason – to accept a proposed suitable employment, other gainful work, training, work practice (internship), apprenticeship for adults, to perform intervention work, public work, to undergo medical or psychological examinations aimed at establishing the ability to work or participate in another form of assistance defined in the Act on employment promotion (...),

b) after the referral did not attend the training, apprenticeship for adults, work practice (internship), execution of works of social benefit, or other forms of assistance specified in the Act on employment promotion (...);

2) 90 days following the registration date if the unemployed person:

a) within 6 months before registration in the poviát labour office, terminated the employment relationship or the service relationship by giving a notice or by mutual (common) agreement;

In this situation circumstances which justify resignation from the work are:

- in case the unemployed within the period of six months before the registration terminated the employment relationship or the service relationship under a common agreement – if the common agreement was a result of bankruptcy, liquidation of the employer or reduction in employment for reasons concerning the plant or the termination of the employment relationship or the service relationship was a result of a change of the place of residence,

- in case the unemployed within the period of six months before the registration terminated the employment relationship or the service relationship by giving notice – if the notice was a result of a change of the place of residence,

- the termination of the agreement without prior notice by the employee in the mode of Article 55(1)¹ of the Act of 26 June 1974 - Labour Code (the employer perpetrated a serious violation of fundamental duties towards the employee). At the same time – despite it does not directly result from provisions of the Act on employment promotion (...) – the reason justifying the termination of the employment relationship in the above-mentioned mode is a situation, where a medical certificate proving harmful impact of the work performed on the health of the employee is issued, and the employer does not move the employee to perform another work, appropriate due to the state of health and professional qualifications of that employee, on the day indicated in that medical certificate.

b) has registered as the unemployed person within the period of business suspension reported to the Central Registration and Information on Business (CEIDG);

3) 180 days following the registration date, if the unemployed person:

a) within 6 months before the registration in the poviát labour office has caused the employment relationship or the service relationship to be terminated through his/her fault without prior notice,

b) within 6 months before the registration in the poviát labour office has caused the employment relationship, concluded on the base of referral by poviát labour office to the employer, who for hiring him/her received grant for telework, activation benefit or bailout of the remuneration, to be terminated before the time period stated in the Act of employment promotion (...);

4) after the period for which the unemployed has received:

a) a benefit provided for in other regulations in the form of one-off money equivalent of miner's leave, one-off social severance payment, allowance severance payment, financial severance payment after social allowance, one-off conditional severance payment or financial unconditional severance payment,

b) compensation for reduced employment termination notice period;

5) after the period of postgraduate training for which the unemployed person has received a monthly financial benefit amounting to more than half of the minimum remuneration for work.

All above mentioned periods shorten the period of receiving the unemployment benefit.

There are no job-search conditions for becoming and remaining entitled to unemployment benefits apart from:

- being registered as unemployed,
- obligation to report to the poviát labour office within the time prescribed by the office to accept a proposal for suitable work or other forms of assistance proposed by the office, or for any other purpose arising from the Act on employment promotion (...) and specified by the labour office, including confirmation of readiness for work.

The entitlement to the unemployment benefit generally is deprived when the entitled person loses the status of the unemployed person.

There are possibilities to re-apply for benefits once they have expired, provided that the conditions concerning the benefit eligibility period (defined above) are fulfilled. According to poviát labour office experience it is common that the unemployed re-apply for benefits as soon as they acquire the right to do it, but unfortunately there are no detailed data describing this process (there are data concerning the persons who were registered as unemployed for at least second time from 1990 – in 2015 82.2%, in 2016 82.6 % of inflow to RU were people registered for the second or more time. Among them in 2015 19.7% and in 2016 19.1% were entitled to UB, compared to 21.0% in 2015 and 18.5% in 2016 of unemployed registered for the first time).

2.1.2 Contribution conditions

Contribution to the Labour Fund is paid by the employer. The contribution equals 2.45 percent of the basis for the social security contributions.

2.2 Calculation of benefit amount

2.2.1 *Calculation of gross benefit*

The monthly level of unemployment benefit in recent years amounted to:

- From 1 September 2001 to 31 August 2002 – PLN 476.70.
- From 1 September 2002 to 31 August 2003 – PLN 498.20.
- From 1 September 2003 to 28 February 2004 – PLN 503.20.
- From 1 March 2004 to 31 May 2005 – PLN 504.20.
- From 1 June 2005 to 31 May 2006 – PLN 521.90.
- From 1 June 2006 to 31 May 2007 – PLN 532.90.
- From 1 June 2007 to 31 May 2008 – PLN 538.30.
- From 1 June 2008 to 31 May 2009 – PLN 551.80.
- From 1 June 2009 to 1 January 2010 – 575.00.
- From 1 January 2010 to 31 May 2010 – 717 PLN in first three months of UB collection, 563 PLN - afterwards.
- From 1 June 2010 to 31 May 2011 – 742.10 PLN in first three months of UB collection, 582.70 PLN - afterwards.
- From 1 June 2011 to 31 May 2012 – 761.40 PLN in first three months of UB collection, 597.90 PLN – afterwards.

- From June 2012 to 31 May 2013 – 794.20 PLN in first three months of UB collection, 623.60 PLN afterwards.
- From 1 June 2013 to 31 May 2014 – 823.60 PLN in first three months of UB collection, 646.70 PLN afterwards.
- From 1 June 2014 to 31 May 2015 – 831.10 PLN in first three months of UB collection, 652.60 PLN afterwards.
- Since 1 June 2015 to 31 May 2018 – 831.10 PLN in first three months of UB collection, 652.60 PLN afterwards.

Pursuant to the Act of 20 April 2004 on employment promotion and labour market institutions (Journal of Laws 2015, item 149 with later amendments) unemployment benefits are subject to indexation on 1 June by the average annual total price index of consumer goods and services for the previous year. Indexation of unemployment benefits doesn't apply in case when the average annual total price index of consumer goods and services has not changed or has decreased.

Additionally the benefits are adjusted according to the length of the unemployment benefit eligibility period:

- persons having less than 5 years of unemployment benefit eligibility period receive 80 per cent of benefit,
- persons having from 5 to 20 (excluding 20) years of unemployment benefit eligibility period receive 100 per cent of benefit,
- persons having at least 20 years of unemployment benefit eligibility period receive 120 per cent of benefit.

2.2.2 *Income and earnings disregards*

The unemployed person cannot receive monthly non-labour income in the amount exceeding the 50 percent of the minimum gross remuneration (excluding income from interest rates or income from savings on bank accounts).

The minimum gross remuneration amounts to:

- 1680 PLN per month in 2014,
- 1750 PLN per month in 2015,
- 1850 PLN per month in 2016.
- 2000 PLN per month since January 2017.

2.3 *Tax treatment of benefit and interaction with other benefits*

Taxation rate is 18 per cent of gross benefit.

Yearly net benefit = gross benefit – income tax – health insurance

Where:

income tax = (gross benefit * 18% - 556,02) – gross benefit * 7,75% - the income tax cannot be lower than 0, if the result of the deduction is negative number then it is assumed that income tax equals 0

health insurance = gross benefit * 9%

Unemployment benefit is the basis for calculating the old-age pension insurance and disability pension insurance contributions. Both contributions are covered by poviat labour office from Labour Fund's resources in the total amount of 27,52% calculated from gross unemployment benefit.

Please see conventions described in point 10.1.

2.4 Benefit duration

The period of receiving the benefit is:

1) 180 days – for the unemployed residing in the area of the poviat during the period of receiving of the benefit, if the unemployment rate in that area on the day 30 June of the year preceding the day of acquiring the right to the benefit did not exceed 150% of the average unemployment rate in the country;

2) 365 days – for the unemployed:

a) residing in the area of the poviat during the period of receiving of the benefit, if the unemployment rate in that area on the day 30 June of the year preceding the day of acquiring the right to the benefit exceeded 150% of the average unemployment rate in the country or

b) who are over 50 years of age and have at the same time at least 20-year period entitling to the benefit, or

c) who have at least one child to support up to 15 years of age, and the spouse of the unemployed is also unemployed and has lost the right to the benefit due to expiration of the period of receiving thereof after the day of acquiring the right to the benefit by that unemployed, or

d) who are single person bringing-up at least one child up to 15 years of age.

From 2010 the unemployment benefit is paid at a higher rate for the first three months and after then decreases to an amount similar to that observed in previous years.

There are possibilities to re-apply for benefits once they have expired, provided that the conditions concerning the benefit eligibility period (defined above) are fulfilled.

2.5 Treatment of particular groups

The Act on employment promotion and labour market institutions defines six groups of people at the special situation on the labour market (changes in force from 27th of May 2014)

- young unemployed (aged 30 or less),
- long term unemployed (the unemployed spell exceeds 12 months within last 2 years)
- the unemployed aged over 50,
- the unemployed receiving social assistance benefit
- the unemployed with at least one child aged up to 6 years or at least one child with disabilities aged up to 18 years,
- the unemployed with disabilities.

The unemployed who belong to these groups is given the priority in referral to participation in special programs.

2.5.1 Young persons

The young unemployed can participate in all ALMP offered by local labour office. However, in case of internship the duration of this measure may be longer than in case of other unemployed, i.e. 12 months compared to 6 months. This rule applies to unemployed up to 30 years of age.

Young unemployed receive scholarships due to participation in ALMP on a regular basis.

Reimbursement of employers' social insurance contribution for the unemployed below 30 years of age, undertaking their first job is an instrument which constitutes for the employer the guarantee of refund, for a period up to 12 months, costs of social insurance premiums in the amount determined in the contract between poviats labour office and the employer, not exceeding 50% of the minimum remuneration for work. The employer is obliged to continue to employ the unemployed for 6 months after the end of the refund period.

Additionally, in case of hiring the unemployed up to 30 years of age, referred by the poviats labour office, employers are exempt from obligation of paying contribution to the Labour Fund in first 12 months of employment. This exemption applies also to the contributions to the Guaranteed Employee Benefits Fund.

2.5.2 *Older workers*

Unemployed over 50 years old may be entitled to the unemployment benefit for the longer period of 365 days (see 2.4).

As of 1 August 2004 the responsibility for pre-retirement benefits and pre-retirement allowances (also in case of granting and payment of these benefits) was transferred from local labour offices to the Social Insurance Institution². The pre-retirement allowance can be granted to a person who had lost his/her job, who was registered as unemployed for at least 6 months and was receiving the unemployment benefit (for at least 180 days) and who:

- is at least 56 (women) or 61 (men) years old and has insurance record to receive an old-age pension of at least 20 or 25 years respectively who was employed for at least 6 months by the last employer and his/her employment relationship/the service relationship was terminated due to liquidation of the employer or its insolvency or;
- is at least 55 (women) or 60 (men) years old and has insurance record to receive an old-age pension of at least 30 or 35 years respectively who was employed for at least 6 months by the last employer and his/her employment relationship/the service relationship was terminated due to reduction in employment for reasons concerning the plant;
- is at least 56 (women) or 61 (men) years old and has insurance record to receive an old-age pension of at least 20 or 25 years respectively and who runs his own company and paid social security contributions without any break for at least 24 months before he/she declared bankruptcy;
- has lost the entitlement to disability pension (that was previously granted for more than 5 years) and within 30 days registered in in the poviats labour office as unemployed and who was at least 55 (women) or 60 (men) years old at the day of lost the entitlement and has insurance record to receive an old-age pension of at least respectively 20 or 25 years;
- has insurance record to receive an old-age pension of at least respectively 35 or 40 years and was employed for at least 6 months by the last employer and his/her employment contract was terminated due to reduction in employment for reasons concerning the plant; ;
- has insurance record to receive an old-age pension of at least respectively 34 (women) or 39 years (men) and was employed for at least 6 months by the last employer and his/her employment relationship/the service relationship was terminated due to liquidation of the employer or its insolvency.

² Act of Law of 30th of April 2004 on pre-retirement benefits (Journal of Laws 2013 item 170, with later amendments).

The pre-retirement allowance is granted if he/she meets all of the following requirements:

- is still registered as an unemployed person,
- within the period of receiving the unemployment benefit did not refuse without justified reason a proposal of suitable employment or other gainful work or employment for intervention works or public works,
- fills an application for the pre-retirement benefit within 30 days from the day of issue by the poviát labour office a document certifying the 180 days of receiving the unemployment benefit.

As from 1 August 2004 the benefit amounts to PLN 670 and will be subject to indexation. The benefit together with additional income may not exceed a half of average monthly remuneration from the previous year proclaimed by the President of the Central Statistical Office, and additional income may not be higher than 70% of this remuneration. The average pre-retirement allowance amounts to:

- PLN 670.00 – 1 August 2004 – 28 February 2006,
- PLN 711.54 – 1 March 2006 – 29 February 2008,
- PLN 757.79 – 1 March 2008 – 28 February 2009,
- PLN 804.02 – 1 March 2009 – 28 February 2010,
- PLN 841.17 – 1 March 2010 – 28 February 2011,
- PLN 867,25 – 1 March 2011 – 29 February 2012,
- PLN 938,25 – 1 March 2012 – 28 February 2013,
- PLN 975,78 – 1 March 2013 – 28 February 2014,
- PLN 991,39 – 1 March 2014 – 28 February 2015,
- PLN 1024,25 – 1 March 2015 – 28 February 2016,
- PLN 1029,86 – 1 March 2016 – 28 February 2017.

Unemployed people aged 50 years and more can participate also in all active measures offered by poviát labour office and then receive benefits linked to this measures (i.e. trainings, internships, apprenticeship or start education in a school for adults).

As it was stated above (2.5), the unemployed over 50 years old are considered as a group at the special situation on the labour market, to which is given the priority in referral to participation in special programs.

Moreover, based on Art. 104b paragraph 2 of the Act on employment promotion (...), employers are exempt from the obligation of paying contributions to the Labour Fund for employed aged at least 55 years for women and at least 60 years for men. In addition, based on Art. 104b paragraph 1 of the Act on employment promotion (...), in case of hiring the unemployed aged over 50 registered in labour office for at least 30 days before referring to the employer, employers are exempt from obligation of paying that contribution in first 12 months of employment. This exemption applies also to the contributions to the Guaranteed Employee Benefits Fund.

Since 27th of May 2014, when the amendment to the Act on employment promotion (...) was implemented, the new instrument was introduced, i.e. co-financing of wages for hiring unemployed over 50 years old. This co-financing is granted from the Labour Fund for entrepreneurs or employers who hire unemployed over 50 years old for the period 12 or 24 months period (duration depends on employee age). After that period employer has to hire referred person for at least half of the period on which s/he was receiving financial support. The support cannot exceed 50% of minimum remuneration for work.

There was also developed the National Training Fund (NTF) from the resources of the Labour Fund, with the objective to finance training and education of employees and employers. In the first 2 years of the existence of the NTF, i.e. 2014-2015, the support from this Fund was dedicated to the older employees and employers – over 45 years of age.

2.5.3 *Unskilled workers*

The unskilled workers are defined as persons with educational attainment ISCED 1, ISCED 2 or ISCED 3C long (general upper-secondary schools – licea ogólnokształcące).

The low-skilled unemployed (i.e. without certified qualifications to perform any occupation) who take up education in the upper-secondary school for adults or who take up evening or extramural tertiary studies are granted scholarship amounting to 100 percent of the unemployment benefit for 12 months (from the date of beginning of the education). The scholarship may be prolonged until graduation. Scholarships are means-tested (family income criterion within social assistance legislation). The loss of the status of unemployed or discontinuation of education means also the loss of the eligibility to the scholarship. If a person takes up work during the education and continues it, the payment of the scholarship continues in amount of 20 percent of the UB. Training organised by poviát labour office can take up to 6 months, and in cases justified by the training programme for a given occupation no longer than 12 months. But trainings for persons without vocational qualifications can take up to 12 months, and in cases justified by the training programme for a given occupation no longer than 24 months. Unskilled or low-skilled unemployed can participate also in other active labour market measures offered by poviát labour office and then receive benefits linked to this measures (e.g. apprenticeship for adults, work practice (internship)).

2.5.4 *Lone parents with children aged 18 years or less*

The Act of employment promotion and labour market institutions does not concern intuitions responsible for childcare.

- The costs of childcare (only in case of children aged 6 or less (aged 7 or less in case of disabled children)) may be reimbursed when an unemployed person takes up a work or is referred to work practice (internship), apprenticeship for adults or training and monthly income for this is less than minimum remuneration for work. The reimbursement amounts up to 50 percent of the unemployment benefit for every child. It is paid for the period up to 6 months.

If the unemployed is referred to work practice (internship), apprenticeship for adults or training reimbursement can be obtained for the whole training period. Similarly the costs of care for other dependent person may be reimbursed.

Since 27th of May 2014, when the amendment to the Act on employment promotion (...) was implemented, unemployed single person bringing-up at least one child up to 15 years of age – just for this reason – is entitled to the unemployment benefit for the longer period of 365 days.

Moreover, this amendment introduced new instruments, i.e. grant for telework and activation benefit, which are granted to the employer for hiring, referred by the poviát labour office, the unemployed parents or the unemployed taking care of dependent person, who gave up employment for the reason of taking care of the child or dependent person.

Additionally, employers shall not pay contributions to Labour Fund for employees returning from maternity leave, leave on the terms of maternity leave parental leave or childcare leave during a period of 36 months commencing as of the first month after returning to work.

It is necessary to point out that grant for telework, activation benefit and exempt from obligation to pay contribution to the Labour Fund are instruments not dedicated specifically for single parents.

2.5.5 *Disabled*

Act on employment promotion (...) does not contain provisions addressed especially for the disabled, but the provisions of the Act protect the principle of equal treatment in access to and use of the labour market services and labour market measures, regardless of i.a. disability.

According to the Act of 27 August 1997 on vocational and social rehabilitation and employment of persons with disabilities (Journal of Laws 2016 item 2046) the person with disability registered in the poviát labour office as an unemployed person or job seeker not being employed, has the right to take advantage of labour market services or instruments on the terms as specified in the provisions on employment promotion and labour market institutions.

The person with disability registered in the poviát labour office as job seeker not being employed, has the right, on the terms as an unemployed person, to take advantage of labour market services or instruments, listed below:

- 1) training;
- 2) work practice (internship);
- 3) intervention works;
- 4) apprenticeship for adults;
- 5) medical or psychological examinations;
- 6) refund of costs of:
 - travelling from the place of residence to the place of employment or other gainful work, or during the period of work practice (internship), apprenticeship for adults, classes in vocational counseling,
 - accommodation;
- 7) financing of the costs of commuting to the employer and back in case when person was referred to the employer who submitted job offer, if the seat of such employer is located outside the place of residence of the unemployed;
- 8) post graduate studies;
- 9) trainings on the basis of the trilateral training agreements concluded between the starost, employer and training institution;
- 10) voucher for settlement;
- 11) training voucher;
- 12) work practice (internship) voucher.

Expenditures for labour market instruments or services mentioned above concerning:

- unemployed disabled persons – are financed from the Labour Fund,
- disabled persons registered as job seekers not being employed – are financed from the State Fund for Rehabilitation of Persons with disabilities.

3. **Unemployment assistance**

None

4. Social assistance

Program name in local language		Zasiłek okresowy (Temporary benefit)
Minimum age condition for social assistance receipt		--
Legal behavioural requirements	Registration as unemployed	No
	Participation in integration measures	No
	Active job search	No
	Work requirement	No
	Other conditions for receipt of benefit (including requirements for conditional cash transfers (CCT))	No, but social assistance center may, under a social contract, oblige the person collecting the benefit to take certain actions
	Legal behavioural requirements for adult family members other than the benefit claimant	None, but social assistance center may, under a social contract, oblige the person collecting the benefit or other members of the household to take certain actions
Determination of benefit levels		National The commune council (rada gminy) may, by resolution, increase the minimum amount of temporary benefit.
Uprating mechanism of the benefit		Ad-hoc
Other supplements to basic benefit (per family)		None
Means-test for social assistance	Earnings disregards	None
	Benefit withdrawal rate with regard to earned income	100% But: 1. It may be paid for up to 2 months after job take-up, regardless of the income earned, for a person with a signed social contract 2. It may be granted in particularly justified cases to a person or family with incomes exceeding the income criterion but subject to the reimbursement of part or all of the amount of the benefit.
	Assets included in means test?	Yes
	Other benefits included in the means test	Yes. Some social payments are excluded, but these are out of the scope of the model
Benefit provision (eligibility (E), generosity (G)) varies with	age	n.a.
	family situation	G: + additional dependent rate for each other household member
	over time	n.a.
	other	n.a.

4.1 Conditions for receipt

A. Benefits from social welfare system

General principles: to have insufficient means of living under income criteria (634 PLN single; 514 PLN family per capita) and to meet social criteria.

Income criteria per capita monthly (in PLN)

	From May 2004
Single person family	461
At least two-persons Family	316
	From October 2006
Single person family	477
At least two-persons Family	351
	From October 2012
Single person family	542
At least two-persons Family	456
	From October 2015
Single person family	634
At least two-persons Family	514

NOTE -

Social criteria:

Main criteria for **permanent** benefit: full inability to work because of age or disability.

Social assistance consists of various categories of cash benefits as well as different forms of non-financial support e.g. services in the form of social work, care services, specialist counselling - mainly legal and psychological, help in settling official matters or other key livelihood issues.

As for cash benefits, there are three basic types of them: permanent benefit, temporary benefit and purpose benefit (together with special purpose benefit).

As the rule, cash benefits can be granted to persons and families whose income per capita does not exceed criteria stipulated in the Act on Social Assistance.

Permanent benefit (zasiłek stały) is an obligatory allowance, granted to persons incapable of working, due to her/his age or disability, provided that her/his income does not exceed the income criterion.

Temporary benefit (zasilek okresowy) may be granted to persons and families without sufficient income (income lower than legal income criterion), particularly due to:

- long term illness,
- poverty,
- orphanage,
- homelessness,
- unemployment.

Other reasons for social benefit support are: family violence, need to protect motherhood and large families, inability to provide for the care of children or a household, especially in a large or incomplete families, difficulties in adjustment to life of youth raised in care and education centres, difficulties in integration of refugees, difficulties in adjusting to life upon the release from penal institutions, alcohol and drug addiction, natural ecological disaster, crisis situation.

Purpose benefit (zasilek celowy) – may be granted in particularly justified cases (e.g. in particular for coverage, in whole or in part, of the costs of purchase of food, medicines and treatment, fuel, clothing, necessary household items, small renovations and repairs in the apartment, as well as funeral costs); this kind of support may be granted (as special purpose benefit) even to persons or families who fail to meet the income criterion but who need support from social assistance.

Person who fail to meet the income criterion, i.e. his/her income is higher than the legal criterion stipulated in the Act on Social Assistance, may be also granted with temporary benefit providing that he/she will reimburse for it.

Temporary benefit may be also granted for up to 2 months after job take-up, regardless of the income earned, for a person with a signed social contract.

B. Benefits from Social Insurance Institution – social pension

Social pension are paid by the Social Insurance Institution³ to adult person due to inability to work that occurred in childhood (before 18 years old) or during studies.

4.2 Calculation of benefit amount

4.2.1 Calculation of gross benefit

A. Benefits from social welfare system

The modelling assumes the person receives the “temporary benefits” as these are more appropriate for unemployed people.

Permanent benefits

³ Since October 2004, social pension was excluded from social welfare system.

Permanent benefits – the level stated in the Act on Social Assistance and the level= family income criterion per capita – family income per capita,

Maximum benefit: 604 PLN monthly⁴, minimum benefit = 30 PLN

To be eligible one must have disability of significant or moderate degree or be unable to work due to age, whereby the age limit is 60 for women and 65 for men.

Temporary benefits

Final temporary benefit amount depends on discretionary administrative decision, might be less than maximum, which is calculated as follows:

1. in the case of a single person - up to the difference between the income criterion of a single person and his/her income, provided that the amount of the allowance cannot exceed PLN 418 per month;
2. for the family - up to the difference between the family income criterion and the family income.

The amount of temporary benefit cannot be lower than 50% of the difference between:

1. the criterion of income of a single person household and the income of that person
2. the criterion of income of the family and the actual income of that family.

The amount of the temporary benefit cannot be lower than 20 PLN per month. If the calculated benefit is lower than 20 PLN, it is levelled to 20 PLN and paid in this amount.

The commune council (rada gminy) may, by resolution, increase the minimum amount of temporary benefit.

B. Benefits from Social Insurance Institution – social pension

The amount of social pension equals to 84% of minimum disability pension:

Between March 2008 and February 2009	PLN 534,48 per month
Between March 2009 and February 2010	PLN 567,08 per month
Between March 2010 and February 2011	PLN 593,28 per month
Between March 2011 and February 2012	PLN 611,67 per month
Between March 2012 and February 2013	PLN 671,31 per month
Between March 2013 and February 2014	PLN 698,17 per month
Between March 2014 and February 2015	PLN 709,34 per month

⁴ Since 1 October 2015

Reference date for all information is **July 1st 2016**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

Between March 2015 and February 2016	PLN 739,58 per month
Since March 2016	PLN 741,35 per month

4.2.2 *Income and earnings disregards*

4.3 ***Tax treatment of benefit***

Social assistance benefits are not taxable. Social pensions are subject to personal income tax and health care contributions.

4.4 ***Benefit duration***

The period for which the temporary benefit is granted is determined by the local social assistance center dependent on the case circumstances.

4.5 ***Treatment of particular groups***

4.5.1 *Young persons*

None

4.5.2 *Older workers*

None

4.5.2 *Disabled*

None

5. Housing benefits

Regular housing benefits	Program name in local language		Dodatki mieszkaniowe
	Entitlement depends on	Household type/size	Yes
		Income	Yes
		Dwelling size	Yes
		Geographic location	No
		Actual rental cost	Yes
	Description of regular housing benefit		Benefit based on the difference between "reasonable rent" and actual housing costs. Housing costs cannot exceed a maximum amount, calculated based on the size of the family and the size of the flat.
	Uprating mechanism of the benefit		None However, benefit level is increasing with the rise in minimum retirement pension, as it constitutes given % of this amount.
Housing related support through other benefits		For social assistance recipients: Housing and heating allowance at discretion of Social assistance centres	

5.1 Conditions for receipt

Housing benefits are paid by local authorities to the low income households (the housing benefits are paid to the owners of the houses, flats and tenant.) If the income exceeds these limits and the housing benefit is higher than the surplus of the income criteria the benefit is paid (than the housing benefit equals the difference between the income surplus and the achievable housing benefit).

It is of a temporary nature - it is granted for a period of 6 months with the possibility of re-granting if the statutory conditions are met.
Housing benefits are not part of the social assistance system.

In 2015 the average housing benefit (for one flat) was equal to 204,10 PLN⁵.

Since 01.01.2004 these benefits are in communes (gminy) competence only.

Income criteria

A single person must have gross income under 175 per cent of the minimum retirement pension and families must have gross income equal to less than 125 per cent of the minimum retirement pension per capita.

⁵ Data of the Polish Central Statistical Office:

<http://stat.gov.pl/obszary-tematyczne/infrastruktura-komunalna-nieruchomosci/nieruchomosci-budynki-infrastruktura-komunalna/gospodarka-mieszkaniowa-w-2015-r-7,11.html>

Income criteria (monthly, PLN)			
	June 2002 – February 2003	March 2003 – February 2004	March 2004 – December 2004
Single household (160% minimum pension)	852,70	884,20	900,13
Per capita for family (110% minimum pension)	586,20	607,89	618,84
	January 2005 – February 2006	March 2006 – February 2008	March 2008 – February 2009
Single household (175% minimum pension)	984,52	1045,60	1113,51
Per capita for family (125% minimum pension)	703,23	746,83	795,36
	March 2009 – February 2010	March 2010 – February 2011	March 2011 – February 2012
Single household (175% minimum pension)	1181,43	1236,01	1274,31
Per capita for family (125% minimum pension)	843,88	882,86	910,22
	March 2012 – February 2013	March 2013 – February 2014	March 2014-February 2015
Single household (175% minimum pension)	1398,56	1454,51	1479,79
Per capita for family (125% minimum pension)	998,97	1038,94	1055,56
	March 2015 – February 2016	March 2016 – February 2017	
Single household (175% minimum pension)	1540,79	1544,48	
Per capita for family (125% minimum pension)	1100,56	1103,20	

5.2 *Calculation of benefit amount*

5.2.1 *Calculation of gross benefit*

Benefit is paid based on the difference between what is considered a reasonable payment for a family and actual housing costs. Housing costs cannot exceed a maximum amount, calculated based on the size of the family and the size of the flat.

The reasonable payment for a house is based on the size of the house, as follows:

- 35 m² – one person (max. to 45,50 m²)
- 40 m² – two people (max. to 52,00 m²)
- 45 m² – three people (max. to 58,50 m²)
- 55 m² – four people (max. to 71,50 m²)
- 65 m² – five people (max. to 84,50 m²)
- 70 m² – six people (max. to 91,00 m²)

- each additional person – 5 m² (15 m² disable person in a wheelchair or with the requirement of an independent room)

The area of the house cannot exceed these limits by more than 30%. To calculate the expected housing costs, calculate the cost per square meter of the house, and then multiply this cost per metre by the expected house size. As an example, a single person in a 36m² house paying 360 per month would have a cost per metre of PLN 10. PLN 10 times the expected house size (35m²) gives us an expected housing cost of PLN 350.

The household has to cover the housing expenses up to:

	Single person households		2 to 4 person households		5 and more person households	
Income as % of Min Pension	< 125%	[125%,175%]	< 100%	[100%,125%]	< 100%	[100%,125%]
Household Contribution	15%	20%	12%	15%	10%	12%

Thus if in the above example the individual earns PLN 1000 they would be expected to pay 15% of 1000, or PLN 150. The housing benefit would thus be the expected housing cost (PLN 350) minus their expected contribution (PLN 150), or PLN 200.

5.2.2 *Income and earnings disregards*

5.3 *Tax treatment of benefit and interaction with other benefits*

Not taxable.

5.4 *Treatment of particular groups, including disabled*

The disabled – section 5.2.1.

6. Family benefits

Program name (local name in parentheses if available)			Family allowance (Zasiłek rodzinny)	Child care benefit, Family 500 Plus Programme (świadczenie wychowawcze, Program Rodzina 500 Plus)
Type of benefit			Targeted	Universal Targeted (only for the first child)
Eligibility criteria	Age limits for children up to and including (in parentheses if student)		17 (20 following graduation from school, 23 if continuing education and is disabled)	17
	Other conditions for receipt of benefit (including requirements for conditional cash transfers (CCT))		No	No
Uprating mechanism of the benefit			Ad-hoc revisions	Ad-hoc revisions
Benefit amount	Benefit amount per child varies with (where +: positively; 0: no influence; -: negatively; --: fixed amount per family)	Age of child	+	0
		Number of children	+ (additional supplement for large family with 3 or more children)	0 (means-test only for the first child)
	Earnings disregard		--	--
	Withdrawal rate		Withdrawn proportionally to the amount of net income per family exceeding income criterion (mechanism “penny for penny”): PLN 674 per month or PLN 764 for family with disabled child	fully withdrawn if income exceeds the threshold: PLN 800 per month or PLN 1200 for family with disabled child (only for the first child)
	Assets part of means test?		No	No

6.1 Conditions for receipt

Parents, single parents or legal guardians, or actual guardians (a person who takes care of a child, provided that he/she has applied to a family court to adopt the child) are entitled to family allowance and supplements. The claimant must have a dependent child aged under 18, or under 21 if still in education, or 24 if disabled and still in education.

6.2 Calculation of benefit amount

6.2.1 Calculation of gross benefit

Family allowance – means tested:

Since 1 November 2015 family allowance amounts to:

- *PLN 89 monthly for a child until the child will reach 5 years of age,*
- *PLN 118 monthly for a child in the age of 5 up to 18 years,*
- *PLN 129 monthly for a child in the age of 18 up to 24 years.*

Within family allowance there are following supplementary benefits available:

- 1) Payment granted in the case of a child birth (birth supplement) – PLN 1000 – one-off payment
- 2) Child care supplement in the time of parental leave – PLN 400 – per month (for max 24 months).
- 3) Supplementary allowance for single parents – PLN 185– per child per month, to a maximum of PLN 370 per month. Lone parents with disabled children can receive PLN 265 per disabled child per month, to a maximum of PLN 530 per month. The allowance can be granted to a person under 24 if still in education whose both parents are deceased.
- 4) Supplementary allowance on education and rehabilitation of disabled children – PLN 80 per month per child aged up to 5 and PLN 100 – per child aged 6-24.
- 5) Supplementary allowance for raising child in large family (3 children and more) – for third and next child – 90 PLN per child per month.
- 6) Supplementary allowance at beginning of the school year – PLN 100 per child - one-off payment per each year. Mandatory school age is 7 years.
- 7) Supplementary allowance for undertaking by child education in a school outside the area of the place of residence – PLN 105 – per child per month (if child lives in locality, where the school is located), or 63 PLN – per child per month (if child commutes to a school in a locality other than that of the child's place of residence). The allowance is available for 10 months of school year from September to June.

When the amount of family allowance plus supplements for the family determined in accordance with the rule of “penny for penny is less than PLN 20.00 per month, these benefits are not payable.

Birth grant (“becikowe”)

A single payment in the amount of PLN 1000 for a child since 1st of January 2006 shall be granted on the occasion of the birth of a living child. Since the 1st of January 2013 single payment birth grant is granted if the average monthly net income per capita (after deducting the social insurance contribution, income tax and general health insurance contribution) does not exceed 1922 PLN.

Parental benefit (świadczenie rodzicielskie)

The Amendment to the Act on family benefits which entered into force 1th January 2016 introduced new benefit - parental benefit.

On 1 January 2016 a parental benefit was introduced, aside from the already existing family and care benefits. The parental benefit is provided to families to which a child is born but whose members had not been eligible to a parental or maternity leave: students, the unemployed (regardless of registration with a labour office), people employed on the basis of civil law contracts, employees if they are not collecting maternity benefit. The parental benefit is granted regardless of income in the amount of PLN 1000 a month

for 52 weeks (after giving birth one child) up to 71 weeks (after giving birth to five or more children in one labour). The parental benefit is treated as “income” in the means test.

Family 500 Plus Programme (Program Rodzina 500 Plus, świadczenie wychowawcze)

The Act on state support for upbringing children (which entered into force 1 April 2016) introduced a new benefit - in amount of 500 PLN monthly per child until the child turns 18, which is means-tested for the first child and universal for all families for every additional child.

The new benefit of PLN 500 a month is available for parents, actual guardian or legal guardian of a child until the child turns 18. The benefit will also be paid for the second child and any subsequent child without application of any income criteria. It will be paid for the first child if income of the family per one member does not exceed PLN 800 a month (PLN 1,200 if there is a disabled child in the family). Eligibility to this benefit is established for a year (from 1 October to 30 September). The benefit is not taxed.

6.2.2 *Income and earnings disregards*

Family allowance and additional payments to the family allowance are granted for a period of 12 months (1.11 – 31.10), thus the right to benefit is tested once a year.

	Net income criteria per capita (average monthly family net income per capita) in PLN for:	
	families without disabled children	families with disabled children
1 May 2004 - 31 August 2006	504	583
1 November 2012 - 31 October 2014	539	623
1 November 2014 - 31 October 2015	574	664
Since 1 November 2015	674	764

Proportional reduction of the amount of family benefits – mechanism “złotówka za złotówkę” (“penny for penny”) was introduced in January 2016. According to this mechanism family which don’t fulfil income criteria can receive family allowance and family allowance supplements reduced by the amount of exceeding the income criterion. Previously, the whole benefit was withdrawn if income exceeded the threshold. The rule is applied to the family allowance and supplements (but not to Family 500 Plus Programme, parental benefit and birth grant).

6.3 *Tax treatment of benefit and interaction with other benefits*

Not taxable.

Child care benefit 500 Plus is not included into any income criteria. Other family benefits in most cases are included in the means test for social assistance.

Other family allowances are included as “income” in the social assistance system.

6.4 Treatment of particular groups

6.4.1. Lone parents

Lone parents – benefits from the maintenance fund

- It is regulated by the Act on assistance for persons entitled to maintenance of 7 September 2007 (Polish Journal of Laws of 2016, item 169 as amended).
- Benefits from the alimony fund⁶ are granted to entitled person until he reaches 18 years or 25 if still in education or if he has the certificate of high level of disability - for indefinite time, in case the family net income per capita does not exceed PLN 725 (since October 2008). The benefit equals an amount of alimony awarded by court but it can't exceed PLN 500 per month. The proper authorities are engaged to recover the duties from the parent which is obligated to pay the alimony as to the court decision but does not meet this requirement.
- It is not allowed to combine the supplementary family allowance for single parents and the benefits from maintenance fund. The first one is dedicated to single parents if maintenance payments were not awarded for the child from the other parent since:
 - 1) the other parent is dead;
 - 2) the father of the child is unknown;
 - 3) maintenance payments lawsuit against the other parent was dismissed.

6.4.2. The disabled persons and their caregivers

Attendance benefits – for families with disabled persons:

- 1) Care allowance - 153 PLN per month (for the period of validity of the certificate of disability or of level of disability), for a disabled child, disabled person aged over 16 with a certificate of high level of disability, a disabled person aged over 16 with a certificate of moderate level of disability if disability occurred before the age of 21, a person older than 75 (regardless of health condition, unless the person has been granted the nursing supplement for by SII (ZUS)). The right to care benefit is granted regardless of the income criterion.
- 2) Care benefit - PLN 1300 per month, not means tested; for a parent, an actual caretaker of a child, a person who is a related foster family within the meaning of the Act of 9 June 2011 family support and foster care system, other persons charged, in accordance with the provisions of the Act of 25 February 1964 - Family and Guardianship Code, with the maintenance obligation, with the exception of persons with high level of disability if they don't take up or abandon employment or other gainful activity in order to provide care for a person with a certificate of high level of disability or a disability certificate, including the requirements of: constant and long-term care or assistance of another person due to highly reduced capacity to independent life, as well as constant every day involvement of a child's caretaker in the process of treatment, rehabilitation and education of the child, if the disability incurred by the age of 18 at the latest or during education at school or in the university, however, not later than by the age of 25.
- 3) Special attendance allowance – 520 PLN per month, is granted to person, who is according to the provisions of the Act of 25 February 1964 - Family and Guardianship Code (Polish Journal of

⁶ In case if one of the child's parents does not pay the maintenance.

Laws of 2012 No 131, item 788, as amended) obliged to pay maintenance (also spouse) and don't take up or resigns from employment or other gainful employment in due to taking care of a disabled family member with a high or moderate level of disability who needs a permanent or long-term care or assistance of another person in connection with a significantly reduced ability to live independently and need for continuing participation on every day the child's guardian in its treatment, rehabilitation and education. The right to this benefit does depend on income criterion - if average monthly net income (after subtracting the social security contribution, income tax and general health insurance contribution) does not exceed PLN 764 (from 1 November 2015 PLN). When determining the net income are taken into account incomes of the family of the person requiring care and the family of the caregiver.

For people receiving care benefit and special care allowance are paid contributions to the pension schemes. The authority realizing benefits pays the pension contribution from the base of the amount of benefit for the time necessary to obtain the insurance period (the 25-year of contributory and non-contributory period).

6.4.3 Parents

Polish system of leaves for working parents comprises of: maternity leave, adoption leave, additional adoption leave, parental leave and childcare leave.

According to Polish Labour Code (Polish Journal of Laws of 2014 No 31, item 208, as amended), the employee, employed for at least 6 months is entitled to up to 36 months of childcare leave in order to provide personal care to a child, however, until the child is 6 years old. Each parent has a right to one month of the 36 months of this leave, which is granted on a non-transferable basis. If child holds a medical certificate on disability or level of disability – employee is entitled to additional period of childcare leave up to 36 months. As a rule this type of leave is generally unpaid.

In June 2013 a new kind of leave was introduced paid parental leave of 26 weeks. It enable care of the child by both parents during its first year of life. The cumulated length of maternity and parental leave amounts to 52 weeks of paid leave for a birth of one child. Depending on the request of the entitled person, following levels of payment have been foreseen:

- without prior declaration as to the taking up all those leaves – 20 weeks of maternity leave paid 100% and 32 weeks of parental leave paid 60%,
- on the condition of prior declaration – one-year leave (52 weeks) – all these leaves paid 80%.

7. Childcare for pre-school children

From 4th of April 2011 Act on care for children under the age of 3 changed the definition of nursery (it is no longer a healthcare institution) and established new forms of childcare – kids clubs, daycare provider and nannies. Nurseries and kids clubs can be established by: commune (gmina), as well as non-public entities, including private persons. A daycare provider is a person employed by a commune (gmina), corporations and organisational units without legal personality (change introduced by amendment of the Act of July 2013), who takes care of not more than five children. The act expects a possibility to finance some part of costs of hiring a nanny - state budget pays the obligatory social insurance contributions to the amount of a minimum wage.

Nurseries, kids clubs, daycare providers are for taking care of children under 3 years old, while kindergartens for children between 3 and 6 years old. Attending kindergarten is obligatory for 5 and 6-year-old children. Compulsory schooling generally starts at age of 7. Starting from September 1st 2014 schooling for six-year will become compulsory. From 2009 to 2013 there is a transition period in which and parents can decide whether they want their children to start compulsory schooling at 6 or 7 age years old.

Tasks of care of children under the age of 3 are the tasks of a commune. Fees for public childcare institutions are established by local government and in non-public institutions by itself. Local governments generally cover the cost of 5 hours of childcare a day (without board) in public nursery schools. Parents pay for additional hours and board. In non-public nurseries and nursery schools childcare and board is fully paid by parents.

Such entities as commune and non-public entities, who manage a nursery or a kids club or who employ daycare providers, may (not obligatory) receive an earmarked grant from the commune budget for each child in a nursery or a kids clubs or protected by a daycare provider. These entities may also be supported by (not obligatory):

- earmarked grants from the state budget for co-financing of the own tasks related to the organisation of the care of children under the age of 3 on the conditions specified in the regulations related to public finance,
- ministerial and governmental programmes of development of the institutions responsible for the care of children under the age of 3 and to provide financial support in this respect.

For Children over 3 years of age (kindergarten) the amendment to the School Education Act of June 2013 introduced the limit of 1 PLN (Polish Zloty) for the fee paid by parents for every hour of the child attendance beyond 5 compulsory hours (free). The local governments receive earmarked grants from the state budget to cover the difference between the real costs of those educational services and the amount paid by parents.

Data on childcare in 2009 (as of 31 December 2009):

Children staying in nurseries per 1000 children up to age 3:

2009 – 25,8 children

Source: Statistical Yearbook of the Republic of Poland 2011, 2012 Central Statistical Office

2010 – 26,3 children

Reference date for all information is **July 1st 2016**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

Source: *Statistical Yearbook of the Republic of Poland 2012*, Central Statistical Office

Children staying in nurseries, nursery wards, children's clubs per 1000 children up to age 3:

2011 – 33,2 children Source: *Health and health care in 2011*, Central Statistical Office

2012 – 37,9 children

2013 – 47,6 children

2014 – 59,0 children

2015 – 68,0 children

Social Assistance, child and family services in 2012, 2013, 2014, 2015 Central Statistical Office

	Children staying in facilities for children up to the age 3 (as of 31 XII 2011)				
	total	At age of			
		0	1	2	3
Total	40 978	2 650	13 974	20 840	3 237
Public	34 116	2 104	11 812	17 770	2 372
Non-public	6 862	546	2 162	3 070	865
Children staying in facilities for children up to the age 3 (as of 31 XII 2012)					
Total	47 669	3 170	16 190	24 201	3 833
Children staying in facilities for children up to the age 3 (as of 31 XII 2013)					
Total	55 535	2 302	19 928	28 811	4 252
Children staying in facilities for children up to the age 3 (as of 31 XII 2014)					
Total	66 365	2 010	25 320	34 168	4 766
Children staying in facilities for children up to the age 3 (as of 31 XII 2015)					
Total	74 694	1 994	29 896	38 035	4 590

Source: *Health and health care in 2011*, p. 278., Central Statistical Office

Social Assistance, child and family services in 2012, p. 172., Central Statistical Office

Social Assistance, child and family services in 2013, p. 175., Central Statistical Office

Social Assistance, child and family services in 2014, p. 174, Central Statistical Office

Social Assistance, child and family services in 2015, p. 176, Central Statistical Office

Children attending pre-primary education establishments per 1000 children										
Age:	2000/01	2003/04	2004/05	2005/06	2006/07	2007/08	2008/09	2009/10	2010/11	2011/12
3-6	500	523	537	556	584	594	631	673	699	734
3-5	327	357	382	410	446	473	527	597	646	720
6	972	977	981	976	974	949	945	912	867	778

„Concise statistical yearbook of Poland 2007” p. 251, „Concise statistical yearbook of Poland 2008”, p. 249, „Concise statistical yearbook of Poland 2009”, p. 248, „Concise statistical yearbook of Poland 2010”, p. 254, „Concise statistical yearbook of Poland 2012”, p. 258.

Children attending nursery schools per 1000 children										
Age:	2000/01	2002/03	2003/04	2004/05	2005/06	2006/07	2007/08	2008/09	2009/10	2010/11
3-6	388	394	404	416	433	458	479	505	527	538

Reference date for all information is **July 1st 2016**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

6	595	577	577	566	555	552	561	542	514	482
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“Statistical yearbook of the Republic of Poland 2006, 2007, 2008, 2009, 2010, 2011” Chapter XI Education.

Children in pre-primary education establishments (as of September 2009)				
Total	At age of (year of birth)			
	2 (2007)	3-5 (2004-2006)	6 (2003)	7 and more (2002 or earlier)
994138	16269	649951	317423	10495

Children in nursery schools (as of September 2010)				
Total	At age of (year of birth)			
	2 (2008)	3-5 (2005-2007)	6 (2004)	7 and more (2003 or earlier)
816869	19583	623690	170189	3407

“Education in the school year 2010/2011” p. 167

7.1 Out-of-pocket childcare fees paid by parents

There is no information on average fees or on fees for nurseries. Information on fees is only available at the local level (gmina level). Fees for nursery schools consist of monthly fee (fixed on gmina level and established by local government) and payment for feeding (depends on institutions). There are no statistics on regional levels.

Examples* of fees for rural and rural/urban gminas in 2005 (voivodship level):

Voivodship	Fee for nursery school in 2005 (Child aged 3+)
Dolnośląskie	135,60 PLN
Śląskie	70,40 PLN
Łódzkie	133,50 PLN
Wielkopolskie	83,60 PLN
Lubuskie	128,00 PLN
Zachodnio-pomorskie	177,00 PLN
Pomorskie	100,00 PLN
Kujawsko-pomorskie	59,00 PLN
Warmińsko-mazurskie	150,40 PLN
Podlaskie	147,00 PLN
Lubelskie	112,00 PLN
Podkarpackie	101,00 PLN
Małopolskie	172,90 PLN
Świętokrzyskie	107,00 PLN
Mazowieckie	170,00 PLN
Opolskie	97,45 PLN

The average monthly fee for stay in institutions of care for children under the age of 3 incurred by parents and municipalities (by voivodships) in 2015.

No,	Voivodship	The average monthly fee (PLN)					
		nurseries			Children's clubs		
		Total	Community	Parents	Total	Community	Parents
1	dolnośląskie	946,59	636,41	310,18	568,23	201,35	366,88
2	kujawsko-pomorskie	931,47	588,42	343,05	797,42	510,28	287,14
3	lubelskie	698,14	453,97	244,17	429,85	139,14	290,71
4	lubuskie	941,31	574,12	367,19	634,35	393,10	241,25
5	łódzkie	1 050,85	759,16	291,69	519,67	276,17	243,50
6	małopolskie	929,43	485,54	443,89	697,37	302,99	394,38
7	mazowieckie	1 075,41	621,80	453,61	629,83	261,42	368,41
8	opolskie	957,89	598,94	358,95	678,07	228,80	449,27
9	podkarpackie	946,78	662,29	284,49	254,00	175,00	79,00
10	podlaskie	853,23	588,34	264,89	539,72	178,03	361,69
11	pomorskie	895,74	431,40	464,34	627,64	97,03	530,61
12	śląskie	1 238,44	884,55	353,89	571,25	204,15	367,10
13	świętokrzyskie	935,38	629,40	305,98	810,00	612,67	197,33
14	warmińsko-mazurskie	864,33	481,62	382,71	490,96	101,36	389,60
15	wielkopolskie	1 207,58	589,35	618,23	664,36	196,98	467,38
16	zachodniopomorskie	906,56	560,68	345,88	718,34	200,03	518,31
	Poland	995,02	610,06	384,96	619,48	237,39	382,09

Report: Implementation of the Act on care for children under the age of 3 in 2015, p. 27.

In the OECD calculations the fees for 2005 for the region of Mazowieckie, that includes the capital Warsaw and take into account information obtained from 32 childcare facilities out of 17229 ones that are in Poland are used. These are uprated for subsequent years using CPI. A subsidy of 60% is applied to fees for each subsequent child.

A fee of 10 PLN per day is included in the model for feeding costs.

7.2 Child-care benefits

See chapter 6

Reference date for all information is **July 1st 2016**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

Child care supplement in the time of parental leave – PLN 400 – per month (for max 24 months, 36 months, if he/she has a custody of more than one child born during the same labour, 72 calendar months if he/she has a custody of a child who holds a disability certificate or a certificate of severe disability). No additional allowance is made for Lone parents. This is not currently included in the modelling.

8. Employment-conditional benefits

None

9. Lone-parent benefits

State alimonies are granted from the Alimony Fund after meeting the income criteria. These benefits are payable if the family income per person does not exceed PLN 725 PLN.

Alimony benefits are available to a person until 18 years of age. If he / she is at school or college – the age limit is 25 years old, or if he / she has a disability certificate - for an indefinite period of time. The right to benefit from the alimony fund is determined from 1 October to 30 September of the following calendar year.

Benefits from the alimony fund are available in the amount of awarded alimony, but not higher than PLN 500 per month.

See chapter 6.4.1.

Supplementary allowance for single parents – PLN 185 – per child per month, to a maximum of PLN 370 per month. Lone parents with disabled children can receive PLN 265 per disabled child per month, to a maximum of PLN 530 per month.

Program name (local name in parentheses if available)			Supplement to family benefit for lone parents (Dodatek do zasiłku rodzinnego z tytułu samotnego wychowywania dziecka)
Type of benefit			Targeted
Eligibility criteria	Age limits for children up to and including (in parentheses if student)		17 (20 following graduation from school, 23 if continuing education)
	Other conditions for receipt of benefit (including requirements for conditional cash transfers (CCT))		No
Uprating mechanism of the benefit			Ad-hoc
Benefit amount	Benefit amount per child varies with (where +: positively; 0: no influence; -: negatively; --: fixed amount per family)	Age of child	0
		Number of children	0 (up to maximum)
	Earnings disregard		None
	Withdrawal rate		100%
	Assets part of means test?		No

11. Tax system

11.1 Income tax rate schedule

Any individual resident in Poland or on a temporary stay longer than 183 days in a given tax year, is liable to tax on his/her worldwide income, irrespective of the source of that income.

11.1.1 Tax allowances and credits

Work related expenses: standard deductions depend on the number of workplaces and on whether dwelling place and work place are within the same town/city or not.

Annual deductible amounts (in PLN)		
	one workplace	two/more workplaces
same as dwelling place	1335,00	2002,05
different from dwelling place	1668,72	2502,56

Source: www.mf.gov.pl

Basic relief: a tax-reducing amount (a non-refundable tax credit) of PLN 556,02 is available for all taxpayers.

Relief for health insurance contributions: A tax credit is provided that almost equals health insurance contribution paid to the National Health Fund. The contribution is 9.0 per cent of the basis, tax relief is 7.75 per cent of the basis.

Relief for children

On the basis of the amendment of the Act on Personal Income Tax, which has been in force since 1st January 2013, the new model of relief for children is applied.

A taxpayer can deduct from the due tax, decreased by the amount of health contributions specified in the PIT Act, the amount, which is equal for each month of raising a child:

- 92.67 PLN (annually 1112.04 PLN) for the first child, if the income received by parents (married or single parent, who meets special requirements) doesn't exceed in the tax year the amount of 112000 PLN. For other parent the threshold of income is 56000 PLN,
- 92.67 PLN (annually 1112.04 PLN) for the second child,
- 166.67 PLN (annually 2000.04 PLN) for the third child,
- 225 PLN (annually 2700 PLN) for the fourth and every next child.

Since 2015, taxpayers whose due tax is lower than the amount of relief for children, may claim for cash refund for amount of relief which has not been utilized.. However, child tax relief, in such a case, cannot exceed the sum of:

- social security contributions (settled by the taxpayer in the tax return),
- health contributions (settled by the taxpayer in the tax return).

Reference date for all information is **July 1st 2016**

Country chapter for OECD series *Benefits and Wages* (www.oecd.org/els/social/workincentives)

If the taxpayer does not pay social security contributions or health, or they are not charged by the payer - the return of relief will not be possible.

11.1.2 *The definition of taxable income*

The tax base is defined as gross income minus social security (in case of workers) and the above tax allowances. Gross income is the sum of gross earned income and all benefits, whether cash or in kind (with the exception of family benefits, childcare benefits and social assistance benefits).

11.1.3 *The tax schedule*

Tax rate in 2015

Tax base in PLN		Tax amount
Over	Below	
0	85 528	18% of the tax base, less a basic tax credit of PLN 556,02
85 528		PLN 14.839,02 + 32% of surplus over PLN 85 528

Source: www.mf.gov.pl

11.2 *Treatment of family income*

The tax unit is the individual. Couples have the option to file a joint tax return. Spouses, who maintain statutory joint property throughout the fiscal year, and who remain married throughout the fiscal year, may, upon request expressed in joint annual tax return, file the tax jointly on the sum of their income. In such case, tax return is filed in names of both spouses, in the amount of twice the amount of tax due on half of total income of the spouses, however the total does not include revenues taxed on a lump sum basis. The same case applies to single parents, when children have no own income.

Possibility of joint taxation has an impact on reduction of tax amount in case of major differences in levels of income achieved by spouses, or in cases in which one of them has no income at all.

Introduction of this solution was justified by implementation of pro-family policy objectives as well as mitigation of results of tax progressivity in case of disproportionate incomes of spouses.

11.3 *Social security contribution schedule*

Since 1st January 1999 social insurance contributions are paid by employer and employee.

Social insurance contributions **paid by the employee**, which existed in 2010, are still in force. They are listed in the table below. The contribution rate for disability and survivor insurance until June 2007 was 6.50 per cent of wage before taxation.

Scheme	In per cent of wages before taxation
Retirement	9.76 ⁷

⁷ 3.65 percentage points of the retirement contribution are treated as non-tax compulsory payments.

Disability and survivor	1.50
Sickness	2.45
Health	9.00

Furthermore, health insurance contribution is paid by employees as well. Rate of contribution is 9.0 per cent of wage after deducting social insurance contributions. A portion of health insurance contributions (7.75 per cent of wage after deducting social insurance contribution) are tax deductible.

In the case of pension and disability insurance, contributions are not paid on the part of the wage that exceeds PLN121 650.

In respect of income paid under an employment contract with a Polish entity, **employers have an obligation to pay social security contributions** equal to 19.94 per cent of gross wage on average. This value consists of:

Scheme	In per cent of wages before taxation
Retirement	9.76 ⁸
Disability and survivor	6.50
Accident	0.40 – 3.60 (1.62 on average)
Labour Fund	2.45
Guaranteed Employee Benefit Fund	0.10

Disability contribution of employer fluctuated from 4.5 per cent in years 2008-2012 to 6.50 per cent from February 2012 (this rate was also in force before 2007).

Accident contribution of employer varies depending on form of activities, risk category and a number of persons notified to work accident insurance. On average (weighted by the number of insured employees) it accounted for 1.62 per cent of wages before taxation.

11.4 Treatment of particular group

11.4.1 *Young persons*

11.4.2 *Older workers*

11.4.3 *Others if applicable*

12. Part-time work

There are no special rules for part-time workers.

⁸ 3.65 percentage points of the retirement contribution are treated as non-tax compulsory payments.

13. Policy developments

13.1 Policy changes introduced: 2nd July 2015 – 1st January 2017

1. The revision of the amount of the benefits and income criteria in both social assistance as well as family benefits in autumn 2015. Since November 2015, the person is entitled to means tested family benefits if the average monthly net income per capita in the family does not exceed 674 PLN (764 PLN for the family with disabled child). Since November 2017, the person will be entitled to means tested family benefits if the average monthly net income per capita in the family does not exceed 754 PLN (844 PLN for the family with disabled child). Since October 2015, the person is entitled to social assistance benefits if the average monthly net income per capita in the family does not exceed: for single person: 634 PLN; at least two persons family: 514 PLN (see chapter 4 and 6).
2. Increase of the amount of care benefits. From 1 January 2015 to 31 December 2015 care benefit was increased to 1 200 PLN; from 1 January 2016 it increased to 1 300 PLN; from 1 January 2017 has been provided for annual indexation of the care benefit, which consists of the annual increase in the amount of the benefit on the percentage rate by which will increase the minimum wage - from 1 January 2017 care benefit increased to 1406 PLN (see chapter 6).
3. Introduction of 500 Plus Programme on 1 April 2016
4. Introduction of mechanism “penny for penny” in family allowance scheme.
5. Introduction of parental benefits.

ANNEX

DEFINITION OF SOCIAL SECURITY CONTRIBUTIONS AND PAYROLL TAXES.

The following text has been adapted from Annex A of the OECD *Revenue Statistics*.

Social security contributions to general government

Classified here are all compulsory payments that confer an entitlement to receive a (contingent) future social benefit. Such payments are usually earmarked to finance social benefits and are often paid to institutions of general government that provide such benefits. However, such earmarking is not part of the definition of social security contributions and is not required for a tax to be classified here. However, conferment of an entitlement is required for a tax to be classified under this heading. So, levies on income or payroll that are earmarked for social security funds but do not confer an entitlement to benefit are excluded from this heading and shown under personal income taxes or taxes on payroll and workforce. Taxes on other bases, such as goods and services, which are earmarked for social security benefits are not shown here [...] because they generally confer no entitlement to social security benefits.

Contributions for the following types of social security benefits would, *inter alia*, be included: unemployment benefit and supplements, accident, injury and sickness benefits, old-age, disability and survivors' pensions, family allowances, reimbursements for medical and hospital expenses or provision of hospital or medical services. Contributions may be levied on both employees and employers.

Social security contributions paid to institutions outside general government

Contributions to social insurance schemes which are not institutions of general government and to other types of insurance schemes, provident funds, pension funds, friendly societies or other saving schemes [are included here if they are compulsory or quasicompulsory (e.g., by virtue of agreement with professional and union organisations)]. Provident funds are arrangements under which the contributions of each employee and of the corresponding employer on his/her behalf are kept in a separate account earning interest and withdrawable under specific circumstances. Pension funds are separately organised schemes negotiated between employees and employers and carry provisions for different contributions and benefits, sometimes more directly tied to salary levels and length of service than under social security schemes.

Payroll taxes

This heading covers taxes paid by employers or employees either as a proportion of payroll or as a fixed amount per person, and which do not confer entitlement to social benefits. Examples of taxes classified here are the United Kingdom national insurance surcharge (introduced in 1977), the Swedish payroll tax (1969-1979), and the Austrian Contribution to the Family Burden Equalisation Fund and Community Tax.